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Caregiver Interview Questions

Applicant Name: _____ **Position Applied For:** _____

Why are you applying for the Caregiver position? _____

What made you apply with our company? _____

Tell me what makes you most excited about working with seniors. _____

What do you think success looks like in this position? _____

What are your career goals? _____

Are you comfortable providing personal care to Clients? _____

Tell me about your experiences that can help in this role. _____

Tell me about a time when you made a mistake at a past job. What did you do to correct it? _____

What skill or trait of yours do you think your clients will value the most? _____

What are some of your strengths? _____

What are some of the weaknesses? _____

Can you safely lift 45 pounds? _____
If no, please explain: _____

Offered Wage: _____ **Scheduled Orientation Date:** _____



Homemaker Job Description

Homemaker Job Description

Reports to: Supervisor

Job Summary:

Responsible for providing care and services for agency clients, including routine light house cleaning, meal preparation, dishwashing, bed making and companionship.

Responsibilities:

- Follow Agency policies and procedures
- Performs duties under the supervision of the HCA Manager and designee
- Provide non-medical homemaker services for assigned clients
- Report any observed environmental concerns or changes in the consumer's status that may impact the safety and security of the consumer to the HCA
- Completion of appropriate service notes regarding service provision of each visit, to include confirmation of services provided and the date and time in and out, according to HCA policy
- Duties include: Routine light house cleaning, companionship, meal preparation, dishwashing, and bed making, teaching of tasks to the consumer and assisting clients in completing activities outside the home, such as shopping or laundry

Homemaker will NOT perform any of the following:

- Skilled home health services
- Personal Care services such as bathing, dressing, shaving
- Administering medications, lotions, etc.
- Household repairs or maintenance
- Cutting fingernails of toenails of any client

Qualifications:

- High school diploma or general education degree (GED) required
- 1+ years of relevant caregiving experience or related
- Demonstrated ability to multi-task and prioritize tasks without guidance
- Demonstrated ability to read, write, and speak English
- Must be able to lift, pull, push and carry 25 pounds; must be able to bend, twist, stoop, kneel and reach

I, undersigned, have read and understand the Homemaker Job Description and agree to perform the functions of the role.

Employee Signature _____ Date: _____



Personal Care Worker Job Description

Reports to: Supervisor

Job Summary:

Responsible for providing care and services for agency clients, including routine light house cleaning, meal preparation, dishwashing, bed making and companionship. In addition, responsible for performing personal care tasks, including skin care, ambulation, bathing, dressing and transfers.

Responsibilities:

- Provide non-medical homemaker services for assigned clients
- Provide all duties and responsibilities of the Homemaker position
- Report any observed environmental concerns or changes in the consumer's status that may impact the safety and security of the consumer to the HCA
- Completion of appropriate service notes regarding service provision of each visit, to include confirmation of services provided and the date and time in and out, according to HCA policy
- Observation and maintenance of the home environment in accordance with the service plan that ensures the safety and security of the consumer
- Reporting any observed or stated changes in the consumer's physical, cognitive, and/or developmental status
- Assistance with non-medical activities of daily living, personal care, and any other assignments as included in the service plan
- Duties outlined in 6 CCR 1011-1 Chapter 26, Section 7.4(F), including: skin care, ambulation, bathing, dressing, exercise, feeding, hair care, mouth care, nail care, positioning, shaving, toileting, transfers, medication assistance, respiratory care, accompaniment, protective oversight and respite care
- Other duties as assigned by the Supervisor

Qualifications:

- High school diploma or general education degree (GED) required
- 1+ years of relevant caregiving experience or related
- Demonstrated ability to multi-task and prioritize tasks without guidance
- Demonstrated ability to read, write, and speak English
- Must be able to lift, pull, push and carry 25 pounds; must be able to bend, twist, stoop, kneel and reach
- Completed orientation and training, including competency evaluation

I, undersigned, have read and understand the Homemaker Job Description and agree to perform the functions of the role.

Employee Signature _____ Date: _____



Caregiver Availability & Emergency Contact Information

PLEASE PRINT CLEARLY:

Employee Full Name: _____ Date: _____

Address: _____

Email Address: _____

Cell Phone: _____ Home Phone: _____

Allergies (including pets, smoking): _____

Emergency Contact Name: _____

Relationship: _____

Phone: _____ Address, if different: _____

Availability

Hours Wanting/Week: _____

Enter Available Hour Ranges	Mon	Tues	Wed	Thu	Fri	Sat	Sun
AM							
PM							
Overnights							

Comments on Availability: _____

Are you bilingual? ___ No ___ Yes: _____ Interested in night shifts? ___ Yes: _____

Do you have reliable transportation/current insurance to be able to transport Clients? _____

How far are you able to drive for Client transport? _____

Applicant Signature

Date



Caregiver Rules of the Road

Caregivers should follow the following policies for every shift.

Arrive on Time: Caregivers should plan to arrive at their shift 5 minutes early to be ready to work at start of shift. If the caregiver is going to a meet and greet with a client brand new to Right at Home, be 10 minutes early to meet the member of the management team who has come out to introduce you on that first shift; make a good first impression! If the caregiver is running late: call the office, do NOT call the client directly. The office will call the client. Chronic lateness due to being lost, heavy traffic, car problems, daycare problems, etc., will not be tolerated. Timeliness is one of the most important things our clients care about. Tardies are tracked: ongoing tardiness will be followed up with coaching and/or progressive discipline.

Accepting and Working Shifts: Once a caregiver tells an Office Staff Member they have accepted a shift, the caregiver is responsible for that shift and for showing up on time. The only way that shift will be canceled is if the Office Staff Member specifically calls that caregiver and tells them their shift is canceled. There is no other acceptable reason for a caregiver to miss a shift. Not showing up for a shift for any reason, without office confirmation is a "No Call No Show" and is considered voluntary resignation. All changes in shifts must be arranged through the office. Caregivers are not to make or change shifts with clients directly.

Calling Off of Shifts: We understand there may be an emergency that comes up where a caregiver cannot work and cannot give 4 hours' notice. Multiple occurrences of last minute call offs will be considered "No Call No Show" and be considered voluntary resignation. If a caregiver has a family or hospital emergency, they are still required to give call off notice to the office to prevent client abandonment. Missing a shift without calling off for any reason is a No Call No Show. Telephone or mobile phone access is everywhere and caregivers are expected to uphold their professional obligation to their clients.

Staying Up to Date and Following Care Plans: It is part of employment at Right at Home that all caregivers are expected to know the care plan for their client before they start that client's shift. Caregivers are provided their own user name and password to get into the software to check updates on client plan of care. A printed care plan should always be available in the client's home. If no Care Plan is in the home or it is outdated, notify the office immediately.

Checking and Reading Emails sent from Office Staff: A large amount of important information for caregivers is sent via email, including notice on payroll updates, required trainings, mandatory meetings, etc. Caregivers are also offered shifts through email and text messages. It is part of the job to check email and stay up to date on communications from the office. Email communication is a necessity and caregivers must stay up to date and respond to emails when important information is shared.

Weekend Hours: All caregivers are expected to share in covering weekend hours. Caregivers on a 24/7 case will be expected to be a regular part of a rotation that includes weekend hours. Caregivers who are on shorter shifts will be called periodically to cover some weekend hours for clients. This will be a rotation and all caregivers are expected to step forward and share the burden of some weekend hours each month. It is not acceptable to be unavailable every weekend.

Dress Code: The Agency dress code must always be followed, for every shift, no exceptions. Appropriate attire is clean, neat and most of all professional looking: matching scrubs, or nice street clothes, collared tops or blouses,

long slacks or khakis, black or white. If you are performing personal care on a shift, you should be wearing scrubs. Clothes must be modest, no tight or revealing or see through items. Appropriate undergarments must be worn. No jeans, no tank or spaghetti strap or low cut tops, no shorts. Shoes must be clean and in good shape, have heels and toes covered. No sandals, flip flops or wild patterns. No perfumes or strong scents. No loose jewelry of any kind: necklaces, dangling earrings, only plain rings, such as wedding bands. Watches may be worn if clean. Hair must be clean, look well-kept and conservatively styled.

Name Badges: Always wear a name badge on duty. If you are missing a badge we will take your photo and make you a new badge.

Be Professional. Act professional at all times in order to represent the Agency in the best possible way. No matter how close a relationship may be with the client, caregivers are always first and foremost an employee of the Agency. It is each employee's duty to represent the Agency as respectful, caring, capable professionals, showing we are there to add benefit to the client's life.

Support the Team, Support the Office. If a caregiver has concerns or disagreements about how a case is handled, coworker issues, or anything else, it is their duty to take those concerns directly to the Office Staff Member doing supervisory visits on that case. Do not discuss concerns with or in front of clients, their families, other caregivers or any other visiting professionals.

Client Privacy: No caregivers' family members, friends or pets may visit the client's location, nor can a client be taken to a caregiver's home or that of a caregiver's friend or family member. These are violations of HIPAA. If a caregiver is getting a ride to work from a friend or family member, get dropped off a block away from the client's house. Do not get a ride up to the client's door.

Professional Boundaries with Clients: It is Agency policy that caregivers not share personal information regarding finances, personal problems, religious or political affiliations or any other information that is stressful or worrisome with their clients. Additionally, it is a violation of company policy for employees to call or visit clients or client family members when not on shift. All client communications and Interactions should happen on shift or through the office. Finally, it is policy that no gifts or money be accepted from clients or their families. Caregivers who cross professional boundaries through sharing inappropriate information or contacting clients in violation of the above policies will be subject to disciplinary action up to and including termination.

Automobile Cleanliness: Caregivers who use their cars on shifts with clients must maintain a clean, safe car with working air conditioning and heater. If a caregiver is with a client where transporting the client in the caregiver's car is part of the Care Plan, and the caregiver has car problems or the air conditioning/heater is not working, they must call the office before the start of shift so that the client can be notified.

I agree to follow these Caregiver Rules of the Road.

Employee Signature

Date



Acknowledgment of Receipt of Employee Handbook

The Employee Handbook contains important information about the **Dare to Care Home Care**

- , and I understand that I should consult my supervisor regarding any questions not answered in the handbook. I have entered into my employment relationship with the Company voluntarily and understand that there is no specified length of employment. Accordingly, either **Dare to Care Home Care** or I can terminate the relationship at will, at any time, with or without cause, and with or without advance notice.

Since the information, policies, and benefits described in this handbook are subject to change at any time, I acknowledge that revisions to the handbook may occur, except to the Company's policy of employment-at-will. All such changes will generally be communicated through official notices, and I understand that revised information may supersede, modify, or eliminate existing policies.

Furthermore, I understand that this handbook is neither a contract of employment nor a legally binding agreement. I have had an opportunity to read the handbook, and I understand that I may ask my supervisor any questions I might have concerning the handbook. I accept the terms of the handbook. I also understand that it is my responsibility to comply with the policies contained in this handbook, and any revisions made to it. I further agree that if I remain with **Dare to Care Home Care** following any modifications to the handbook, I hereby accept and agree to such changes.

I received a copy of the Employee Handbook on the date indicated below.

I understand that I am expected to read the entire handbook.

Employee name

Date



Receipt of Policies and Procedures

Staff member completed agency Orientation. Below are topics covered during Orientation:

- (1) Employee duties and responsibilities;
- (2) A description of the services provided by the agency;
- (3) The differences in personal care, nurse aide care and health care in the home including limiting factors for the provision of personal care;
- (4) Consumer rights including freedom from abuse or neglect, and confidentiality of consumer records, personal, financial and health information;
- (5) Hand washing and infection control;
- (6) Assignment and supervision of services;
- (7) Observation, reporting and documentation of consumer status and the service furnished;
- (8) Emergency response policies and emergency contact numbers for the agency and for the individual consumer assigned, and
- (9) Training and competency evaluation of appropriate and safe techniques in all personal care tasks for each assigned task to be conducted before completion of initial training.
- (10) Communication skills with consumers such as those who have a hearing deficit, dementia, or other special needs;
- (11) Appropriate training in accordance with the needs of special needs populations served by the agency including communication and behavior management techniques;
- (12) Appropriate and safe techniques in personal care tasks prior to assignment. Areas include bathing, skin care, hair care, nail care, mouth care, shaving, dressing, feeding, assistance with ambulation, exercises and transfers, positioning, bladder care, bowel care, medication reminding, homemaking tasks, and protective oversight;
- (13) Recognizing emergencies and knowledge of emergency procedures including basic first aid, home and fire safety;
- (14) The role of, and coordination with, other community service providers; and
- (15) Maintenance of a clean, safe and healthy environment, including appropriate cleaning techniques and sanitary meal preparation.

The following policies/handouts were reviewed and provided to the staff member:

Personal Care Worker Job Description; Types of Services Provided by the Agency; Differences between personal care, nurse aide care and health care in the home; Direct Allowed and Non-Allowed Tasks; Written Notice of Home Care Consumer Rights; Infection Control Policy; Hand Washing Return Demonstration Checklist; Personal Care Worker Qualifications, Assignment & Supervision Policy; Consumer Service Visit Log; Emergency Contact Numbers; Personal Care Worker Competency Evaluation; Effective Communication with Our Senior Population; Effective Communication Strategies; Understanding and Responding to Dementia-Related Behavior; Appropriate and Safe Techniques for Personal Care Tasks; Emergency Preparedness Plan; Basic First Aid Training Agenda, Home & Fire Safety Training Agenda; A Clean, Safe and Healthy Home Training Agenda

Agency Staff Signature

Date



Differences Between Personal Care, Nurse Aide Care and Health Care in the Home

The HCA recognizes that there are differences in personal care, nurse aide care and health care in the home including limiting factors for the provision of personal care. The HCA has a Class B License provided by the Colorado Department of Public Health and Environment. The home care HCA is able to provide only personal care services. The HCA shall not provide any skilled healthcare service. Here are some points of difference between a CNA and a Personal Care Worker:

Education and Training

CNA - To work as a nurse aide, it's necessary to have a GED or high school diploma. Besides this, candidates are required to take a specific training program generally consisting of 75 to 100 hours of course instruction.

Personal Care Worker - The education requirement is typically a GED or high school diploma. There is no formalized certification program. Personal Care Workers typically qualify for employment by experiences in providing non-medical services.

Certification

CNA - It is mandatory for candidates to qualify for the certification exam, organized by an approved learning institution. Once the certified training program has been completed, the candidate will need to submit to a certified test to obtain a state CNA license. The license must be renewed ongoing to continue to provide CNA services.

Personal Care Worker - There is no state certified license for personal care workers.

Job Duties and Responsibilities

CNA - They offer fundamental basic medical care to patients in a number of settings typically under the direction of RNs or LPNs. They measure vital statistics of the patient, clean the medication equipment, prepare patients for surgery, provide transfers, assist with activities of daily living, perform showers, etc.

Personal Care Worker - They perform non-medical tasks and provide care to consumers that typically require less care and assistance. They don't perform medical tasks and are not under the direction of medical personnel.

Employee Signature

Date



Direct Care Allowed and Non-Allowed Tasks

The HCA shall train personal care workers in the differences in personal care, nurse aide care and health care in the home, including factors for the provision of personal as outlined in this policy. A personal care worker is able to provide non-medical home care services within the scope of a Class B HCA. A nurse aide is able to provide skilled services within the scope of Class A licensure. A personal care worker must complete this training prior to providing care to a consumer.

Typical Duties that can be performed by Personal Care Workers

Include activities of daily living, including bathing, skin care, hair care, nail care, mouth care, shaving, dressing, feeding, assistance with ambulation, exercises and transfers, positioning, bladder care, bowel care, medication reminders, and protective oversight

Duties That Cannot Be Performed by Personal Care Workers and Need Skilled Home Health

If a consumer is experiencing a change of condition where the consumer might skilled home health services, the Personal Care Worker is to contact the HCA office to discuss the change in condition. HCA staff will discuss the consumer needs and provide the personal care worker instruction, as well as discuss any needed changes with the consumer either over the phone, via email or in-person.

Below is a delineated list of tasks identifying what can be performed by a Personal Care Worker, in addition what services need to be performed by a skilled home health agency.

(1) Skin care. A personal care worker may perform general skin care assistance. A personal care worker may perform skin care only when skin is unbroken, and when any chronic skin problems are not active. The skin care provided by a personal care worker shall be preventative rather than therapeutic in nature and may include the application of non-medicated lotions and solutions or of lotions and solutions not requiring a physician's prescription. Skilled skin care includes wound care other than basic first aid, dressing changes, application of prescription medications, skilled observation, and reporting. Skilled skin care should be provided by an HCA licensed to provide skilled home health services.

(2) Ambulation. A personal care worker may generally assist consumers with ambulation if they have the ability to balance and bear weight. If the health professional has determined that the consumer is independent with an assistive device, a personal services worker may be assigned to assist with ambulation.

(3) Bathing. A personal care worker may assist consumers with bathing only if they have the ability to balance and bear weight, except when a transfer involves a lift device. When a consumer has skilled skin care needs or skilled dressings that will need attention before, during, or after bathing, the consumer should be in the care of an HCA licensed to provide skilled home health services for those needs.

(4)Dressing. A personal care worker may assist a consumer with dressing. This may include assistance with ordinary clothing and application of support stockings, including ace bandages and anti-embolic or pressure stockings that can be purchased without a physician's prescription. A personal care worker that assists a consumer with application of any support stocking must receive training from a qualified individual in the stocking's proper application. Prior to application and on an annual basis, the qualified individual shall conduct a proof of competency evaluation in the correct application of support stockings.

(5)Exercise. A personal care worker may assist a consumer with exercise. However, this does not include assistance with a plan of exercise prescribed by a licensed health care professional. A personal care worker may remind the consumer to perform ordered exercise. Assistance with exercise that can be performed by a personal care worker is limited to the encouragement of normal bodily movement, as tolerated, on the part of the consumer and encouragement with a prescribed exercise program. A personal care worker shall not perform passive range of motion.

(6)Feeding. Assistance with feeding may generally be performed by a personal service worker. Personal care workers can assist consumers with feeding when the consumer can independently chew and swallow without difficulty and be positioned upright. Unless otherwise allowed by statute, assistance by a personal care worker does not include syringe, tube feedings, and intravenous nutrition. Whenever there is a high risk that the consumer may choke as a result of the feeding, the consumer should be in the care of an HCA licensed to provide skilled home health services.

(7)Hair care. As a part of the broader set of services provided to consumers who are receiving personal services, personal care workers may assist consumers with the maintenance and appearance of their hair. Hair care may include shampooing, drying, combing, and styling of hair. Medicated shampoo or shampoo that requires a physician's prescription may not be used. Over-the-counter medicated shampoos may be used as part of the broader set of services provided to the consumer, if the personal care worker has been trained by the agency in the proper use of the product. Prior to application and on an annual basis, a qualified individual shall conduct a proof of competency evaluation in the correct use of these products.

(8)Mouth care. A personal care worker may assist and perform mouth care. This may include denture care and basic oral hygiene. Mouth care for consumers who are unconscious, have difficulty swallowing, or are at risk for choking and aspiration shall be performed by an HCA licensed to provide skilled home health services.

(9)Nail care. A personal care worker may assist generally with nail care. This assistance may include soaking of nails, pushing back cuticles without utensils, and filing of nails. Assistance by a personal care worker shall not include nail trimming. Consumers with a medical condition that might involve peripheral circulatory problems or loss of sensation shall be under the care of an HCA licensed to provide skilled home health services.

(10)Positioning. A personal care worker may assist a consumer with positioning when the consumer is able to identify to the personal care staff, verbally, non-verbally, or through others, when the positions needs to be changed. Positioning shall not exceed simple alignment in a bed, wheelchair, or other furniture. A personal care worker may assist a skilled home health worker with a consumer's positioning when any position change addresses skilled skin care concerns. A personal care worker may not be assigned to or independently perform this function.

(11)Shaving. A personal care worker may assist a consumer with shaving only with an electric or a safety razor.

(12)Toileting. A personal care worker may assist a consumer to and from the bathroom; provide assistance with bedpans, urinals, and commodes; provide pericare; or change clothing and pads of any kind used for the care of incontinence. A personal care worker may empty urinary collection devices, such as catheter bags. In all cases, the insertion and removal of catheters and care of external catheters is considered skilled care and shall not be performed by a personal care worker. A personal care worker may empty ostomy bags and provide assistance with other consumer-directed ostomy care only when there is no need for skilled skin care or for observation or reporting to a nurse. A personal care worker shall not perform digital stimulation, insert suppositories, or give an enema.

(13)Transfers. A personal care worker may assist with transfers only when the consumer has sufficient balance and strength to reliably stand and pivot and assist with the transfer to some extent. Adaptive and safety equipment may be used in transfers, provided that the consumer and personal care worker are fully trained in the use of the equipment, and the consumer, consumer's family member, or guardian can direct the transfer step by step. Adaptive equipment may include, but is not limited to wheel chairs, tub seats, and grab bars. Gait belts may be used in a transfer as a safety device for the personal care worker as long as the worker has been properly trained in its use and as long as the consumer is able to assist with the transfer. A personal care worker shall not perform assistance with transfers when the consumer is unable to assist with the transfer. Personal care workers, with training and demonstrated competency, may assist a consumer in a transfer involving a lift device. A personal care worker may assist the informal caregiver with transferring the consumer provided the consumer is able to direct and assist with the transfer.

(14)Medication Assistance. The following requirements apply to all prescription and all over-the-counter medications:

(a)Unless otherwise allowed by statute, a personal care worker may assist a consumer with medication only when the medications have been pre-selected by the consumer, a family member, a nurse, or a pharmacist, and are stored in containers other than the prescription bottles, such as medication minders.

(b)Medication minder containers shall be clearly marked as to day and time of dosage and reminding includes: inquiries as to whether medications were taken; verbal prompting to take medications; handing the appropriately marked medication minder container to the consumer; and, opening the appropriately marked medication minder container for the consumer if the consumer is physically unable to open the container.

(c)Any irregularities noted in the pre-selected medications such as medications taken too often, not often enough, or not at the correct time as marked in the medication minder container, shall be reported immediately by the personal care worker to the supervisor.

(15)Respiratory Care. Respiratory care is considered skilled care and shall not be performed by a personal care worker. Respiratory care includes postural drainage, cupping, adjusting oxygen flow within established parameters, nasal, endotracheal, and tracheal suctioning. Personal care workers may temporarily remove and replace a cannula or mask from the consumer's face for the purposes of shaving and/or washing a consumer's face. Personal care workers may set a consumer's oxygen flow according to written instruction when changing tanks, provided the personal care worker has been specifically trained and demonstrated competency for this task.

(16) Accompaniment. Accompanying the consumer to medical appointments, banking errands, basic household errands, clothes shopping, grocery shopping, or other excursions to the extent necessary and as specified on the service plan may be performed by the personal care worker when all the care that is provided by the personal care staff in relation to the trip is unskilled personal care, as described in these regulations.

(17) Protective oversight. A personal care worker may provide protective oversight including stand-by assistance with any personal care task described in these regulations. When the consumer requires protective oversight to prevent wandering, the personal care worker shall have been trained in appropriate intervention and redirection techniques.

(18) Respite care. A personal care worker may provide respite care in the consumer's home according to the service plan as long as the necessary provision of services during this time does not include skilled home health services.

In addition to the exclusions prescribed in the preceding section, the HCA shall not allow personal care workers to:

- (1) Perform skilled home health services per HCA policy;
- (2) Perform or provide medication set-up for a consumer; or
- (3) Perform other actions specifically prohibited by HCA policy, regulations, or law.



Employee Automobile Use Policy

Will you use your vehicle to complete errands for clients, or to provide transportation for clients?

Yes or No

Do you agree to continue auto insurance coverage on your vehicle while employed with the Agency?

Yes or No

As an employee of the Agency, I agree to the following:

- Have at least 3 years of driving experience
- Maintain my vehicle in good, safe working condition at all times during my employment
- Operate my motor vehicle obeying all traffic laws while working
- Be willing to submit to an annual motor vehicle record check
- Myself and all passengers will wear seatbelts while the vehicle is in operation at all times
- Shall not be under the influence of drugs or alcohol while operating my vehicle while working
- Shall not use my cell phone while driving during work
- Maintain a valid driver's license at all times
- Shall report any traffic violations to my employer within 24 hours

Violation of any items listed above may result in disciplinary action, up to and including termination of employment.

Employee Signature

Date



Client Confidentiality/HIPPA Staff Policy

The Agency strives to ensure confidentiality of consumer records, personal and financial information. This includes providing consumer information only to appropriate staff members and protected record storage procedures. The Agency shall not refuse to share consumer care information unless the consumer has chosen to refuse coordination with external HCAs.

Disclosure of consumer clinical information and records may be necessary in certain circumstances. These circumstances include, but are not limited to:

- If requested by the Client and/or Authorized Representative.
- In external coordination with other agencies, companies, providers, clinicians or other health care professionals for the purpose of providing care services or products related to your care.
- An emergent situation that needs immediate information to provide healthcare services.
- If required by law or process to disclose information to a law enforcement or government HCA.
- Providing information to family members or interested parties that are approved by the Client or appointed representative.

Additionally, for the handling of PHI (Personal Health Information) based on HIPAA Privacy Practices, please review our policies below.

Employees are not to share information about Client's unless it is explicitly continuation of care, where without the information a co-worker is not able to follow the Client Care Plan for care and services. If an employee provides PHI information not for specific client continuation of care purposes, the Administrator should be contacted immediately.

If you have any questions about the confidentiality of your consumers records, please contact our Agency at:

Dare to Care Home Care is located at:

2851 S Parker Rd suite 440.

Aurora , CO 80014

(720)842-2153

Employee Signature

Date



Notice of Provider Privacy Practices (HIPAA) and Acknowledgement

THIS NOTICE DESCRIBES HOW MEDICAL INFORMATION ABOUT YOU MAY BE USED AND DISCLOSED AND YOUR RIGHTS WITH RESPECT TO THIS INFORMATION. PLEASE REVIEW THIS NOTICE CAREFULLY.

Dare to Care Home Care must maintain the privacy of your personal health information and give you this notice that describes our legal duties and privacy practices concerning your personal health information. We must follow the privacy practices described in this notice and as outlined in the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule. If you have any questions about this notice, please contact the Privacy Officer or security official (referred to in this Notice as the "POX") whose contact information is at the end of this Notice under the heading Complaints. The POX is responsible for the development and implementation of the policies and procedures necessary for compliance with HIPAA.

Our Obligations

We are required by law to:

- Maintain the privacy of personal health information.
- Give you this notice of our legal duties and privacy practices regarding health information about you.
- Follow the terms of our notice that is currently in effect.

How We May Use and Disclose Protected Health Information

The following describes the ways we may use and disclose health information that identifies you ("Protected Health Information"), Disclosure includes divulging via online services, emails, text messages, mobile apps, and Web portals. Except for the purposes described below, we will use and disclose Protected Health Information only with your written permission. You may revoke your written permission at any time by writing to our POX.

For Treatment. We may use and disclose Protected Health Information for your treatment and to provide you with treatment related health care services. For example, we may disclose Protected Health Information to doctors, nurses, technicians, or other personnel, including people outside our office, who are involved in your medical care and need the information to provide you with medical care.

For Payment. We may use and disclose Protected Health Information so that we or others may bill and receive payment from you, an insurance company or a third party for the treatment and services you received. For example, we may give your health plan information about you so that they will pay for your treatment.

For Health Care Operations. We may use and disclose Protected Health Information for health care operations. These uses and disclosures are those we deem necessary as we strive to have all of our clients receive quality care and to proficiently operate and manage our offices. For example, we may use your Protected Health Information or your answers to a client satisfaction survey in evaluating the quality of services provided by our staff. We may also disclose your Protected Health Information to our auditors, attorneys, or other professional advisors. We also may share information with other entities that have a relationship with you (for example, your health plan) for their health care operation activities.

Appointment Reminders, Treatment Alternatives and Health Related Benefits and Services. We may use and disclose Protected Health Information to contact you to remind you that you have an appointment with us. We also may use and disclose Protected Health Information to tell you about treatment alternatives or health-related benefits and services that may be of interest to you.

Individuals Involved in Your Care or Payment for Your Care. Unless you object, we may disclose your Protected Health Information to your family, relatives, friends or any other person involved in your care or the payment for your care or any other person you identify. If you are unable to agree or object to such a disclosure, we may disclose such information as necessary if we determine that it is in your best interest based on our professional judgment.

Disaster Relief. We may disclose your Protected Health Information to disaster relief organizations that seek your Protected Health Information to coordinate your care, or notify family and friends of your location or condition in a disaster.

Research. Under certain circumstances, we may use and disclose Protected Health Information for health-related research. For example, a research project may involve comparing the health of clients who received one treatment to those who received another, for the same condition. Before we use or disclose Protected Health Information for research, the project will go through a special approval process. Even without special approval, we may permit researchers to look at records to help them identify clients who may be included in their research project or for other similar purposes, as long as they do not remove or take a copy of any Protected Health Information.

Special Situations

As Required by Law. We will disclose Protected Health Information when required to do so by international, federal, state or local law.

To Avert a Serious Threat to Health or Safety. We may use and disclose Protected Health Information when necessary to prevent a serious threat to your health and safety or the health and safety of the public or another person. Disclosures, however, will be made only to someone who may be able to help prevent the threat.

Business Associates. We may use and disclose Protected Health Information in connection with our business associates that perform functions on our behalf or who provide us with services if the information is necessary for such functions or services. For example, we may use a vendor/business associate to provide services such as: (i) legal, (ii) debt collection, (iii) data aggregation and processing, (iv) billing and collection functions, (v) conducting client satisfaction surveys, and (vi) developing a blended care model for delivery of care services for persons needing care in their homes through a combination of technologies, remote services and in home services. All of our business associates are obligated to protect the privacy of your information and are not allowed to use or disclose any information other than as specified in our contract with them.

Organ and Tissue Donation. If you are an organ donor, we may use or disclose Protected Health Information to organizations that handle organ procurement or other entities engaged in procurement, banking or transportation of organs, eyes or tissues to facilitate organ, eye or tissue donation and transplantation.

Military and Veterans. If you are a member of the armed forces, we may disclose Protected Health Information as required by military command authorities. We also may disclose Protected Health Information to the appropriate foreign military authority if you are a member of a foreign military.

Workers' Compensation. We may disclose Protected Health Information for workers' compensation or similar programs. These programs provide benefits for work-related injuries or illness.

Public Health Risks. We may disclose Protected Health Information for public health activities. These activities generally include disclosures to prevent or control disease, injury or disability; report births and deaths; report child abuse or neglect; report reactions to medications or problems with products; notify people of recalls of products they may be using; a person who may have been exposed to a disease or may be at risk for contracting or spreading a disease or condition; and the appropriate government authority if we believe a client has been the victim of abuse, neglect or domestic violence. We will only make this disclosure if you agree or when required or authorized by law.

Health Oversight Activities. We may disclose Protected Health Information to a health oversight agency for activities authorized by law. These oversight activities include, for example, audits, investigations, inspections, and licensure. These activities are necessary for the government to monitor the health care system, government programs, and compliance with civil rights laws.

Data Breach Notification Purposes. We may use or disclose your Protected Health Information to provide legally required notices of unauthorized access to or disclosure of your Protected Health Information.

Lawsuits and Disputes. If you are involved in a lawsuit or a dispute, we may disclose Protected Health Information in response to a court or administrative order. We also may disclose Protected Health Information in response to a subpoena, discovery request, or other lawful process by someone else involved in the dispute, but only if efforts have been made to tell you about the request or to obtain an order protecting the information requested.

Law Enforcement. We may disclose Protected Health Information if asked by a law enforcement official if the information is: (1) in response to a court order, subpoena, warrant, summons or similar process; (2) limited information to identify or locate a suspect, fugitive, material witness, or missing person; (3) about the victim of a crime even if, under certain very limited circumstances, we are unable to obtain the person's agreement; (4) about a death we believe may be the result of criminal conduct; (5) about criminal conduct on our premises; and (6) in an emergency to report a crime, the location of the crime or victims, or the identity, description or location of the person who committed the crime.

Coroners, Medical Examiners and Funeral Directors. We may disclose Protected Health Information to a coroner or medical examiner. This may be necessary, for example, to identify a deceased person or determine the cause of death. We also may disclose Protected Health Information to funeral directors as necessary for their duties.

National Security and Intelligence Activities. We may disclose Protected Health Information to authorized federal officials for intelligence, counter-intelligence, and other national security activities authorized by law.

Protective Services for the President and Others. We may disclose Protected Health Information to authorized federal officials so they may provide protection to the President, other authorized persons or foreign heads of state or to conduct special investigations.

Inmates or Individuals in Custody. If you are an inmate of a correctional institution or under the custody of a law enforcement official, we may disclose Protected Health Information to the correctional institution or law enforcement official. This disclosure would be if necessary: (1) for the institution to provide you with health care; (2) to protect your health and safety or the health and safety of others; or (3) the safety and security of the correctional institution.

Uses and Disclosures That Requires Us To Give You An Opportunity To Object and Opt Out

If a question about disclosure of your Protected Health Information comes about and you are present and capable of making a decision, we will endeavor to provide you with an opportunity to object to a disclosure, or, in the alternative, we will use our professional judgment to determine that you do not object.

Your Written Authorization Is Required For Other Uses and Disclosures

The following uses and disclosures of your Protected Health Information will be made only with your written authorization:

1. Uses and disclosures of Protected Health Information for marketing purposes; and
2. Disclosures that constitute a sale of your Protected Health Information

Other uses and disclosures of Protected Health Information not covered by this Notice or the laws that apply to us will be made only with your written authorization. If you do give us an authorization, you may revoke it at any time by submitting a written revocation to our POX and we will no longer disclose Protected Health Information under

the authorization. But disclosure that we made in reliance on your authorization before you revoked it will not be affected by the revocation.

Your Rights

You have the following rights regarding Protected Health Information we have about you:

Right to Inspect and Copy. You have a right to inspect and copy Protected Health Information that may be used to make decisions about your care or payment for your care. This includes medical and billing records, other than psychotherapy notes. To inspect and copy this Protected Health Information, you must make your request, in writing, to the POX. We have up to 30 days to make your Protected Health Information available to you and we may charge you a reasonable fee for the costs of copying, mailing or other supplies associated with your request. We may not charge you a fee if you need the information for a claim for benefits under the Social Security Act or any other state or federal needs-based benefit program. We may deny your request in certain limited circumstances. If we do deny your request, you have the right to have the denial reviewed by a licensed healthcare professional who was not directly involved in the denial of your request, and we will comply with the outcome of the review.

Right to an Electronic Copy of Electronic Medical Records. If your Protected Health Information is maintained in an electronic format (known as an electronic medical record or an electronic health record), you have the right to request that an electronic copy of your record be given to you or transmitted to another individual or entity. We will make every effort to provide access to your Protected Health Information in the form or format you request, if it is readily producible in such form or format. If the Protected Health Information is not readily producible in the form or format you request your record will be provided in either our standard electronic format or if you do not want this form or format, a readable hard copy form. We may charge you a reasonable, cost-based fee for the labor associated with transmitting the electronic medical record.

Right to Get Notice of a Breach. You have the right to be notified upon a breach of any of your unsecured Protected Health Information.

Right to Amend. If you feel that Protected Health Information we have is incorrect or incomplete, you may ask us to amend the information. You have the right to request an amendment for as long as the information is kept by or for our office. To request an amendment, you must make your request, in writing, to the POX.

Right to an Accounting of Disclosures. You have the right to request a list of certain disclosures we made of Protected Health Information for purposes other than treatment, payment and health care operations or for which you provided authorization. To request an accounting of disclosures, you must make your request, in writing, to the POX.

Right to Request Restrictions. You have the right to request a restriction or limitation on the Protected Health Information we use or disclose for treatment, payment, or health care operations. You also have the right to request a limit on the Protected Health Information we disclose to someone involved in your care or the payment for your care, like a family member or friend. For example, you could ask that we not share information about a particular diagnosis or treatment with your spouse. To request a restriction, you must make your request, in writing, to the POX. We are not required to agree to your request unless you are asking us to restrict the use and disclosure of your Protected Health Information to a health plan for payment or health care operation purposes and such information you wish to restrict pertains solely to a health care item or service for which you have paid us "out-of-pocket" in full.

If we agree, we will comply with your request unless the information is needed to provide you with emergency treatment.

Out-of-Pocket Payments. If you paid out-of-pocket (or in other words, you have requested that we not bill your health plan) in full for a specific item or service, you have the right to ask that your Protected Health Information

with respect to that item or service not be disclosed to a health plan for purposes of payment or health care operations, and we will honor that request.

Right to Request Confidential Communications. You have the right to request that we communicate with you about medical matters in a certain way or at a certain location. For example, you can ask that we only contact you by mail or at work. To request confidential communications, you must make your request, in writing, to our POX. Your request must specify how or where you wish to be contacted. We will accommodate reasonable requests.

Right to a Paper Copy of This Notice. You have the right to a paper copy of this notice. You may ask us to give you a copy of this notice at any time. Even if you have agreed to receive this notice electronically, you are still entitled to a paper copy of this notice. To obtain a paper copy of this notice, you must make your request to the POX.

Changes To This Notice

We reserve the right to change this notice and make the new notice apply to Protected Health Information we already have as well as any information we receive in the future. We will post a copy of our current notice at our office. The notice will contain the effective date on the first page, in the top right-hand corner.

Complaints

If you believe your privacy rights have been violated, you may file a complaint with our office or with the U.S. Department of Health and Human Services Office of Civil Rights. All complaints must be made in writing. To file a complaint with our office, you should contact and write to the POX at the address on your Home Care Services Agreement. **You will not be penalized for filing a complaint.**

Acknowledgement of Receipt of Privacy Notice (HIPAA)

By signing this form, you acknowledge that **Dare to Care Home Care** has given you a copy of its Notice of Provider Privacy Practices the "Privacy Notice"), which explains how your health information will be used, disclosed and handled in various situations. We offer you a copy of the Privacy Notice immediately and we will try to have you sign this Acknowledgement form on your first date of service with us.

If your first date of service with us was due to an emergency, we must try to give you this Notice and get your signature acknowledging receipt of it as soon as we can after the emergency.

_____ I have received **Dare to Care Home Care** Privacy Notice.

_____ **Dare to Care Home Care** has given me the chance to discuss my concerns and questions about the privacy of my health information.

Client/Authorized Representative Signature

Date



Emergency Preparedness Plan

Staff Emergency Preparedness Plan Education

The HCA has established an Emergency Preparedness Plan (EPP) designed to manage consumers' care and services in response to the consequences of natural disasters or other emergencies that disrupt the HCA's ability to provide care and services or threatens the lives or safety of its consumers.

The Emergency Preparedness Plan includes the provisions for the management of all staff who are designated to be involved in emergency measures, including the assignment of responsibilities and functions. All staff are informed of their duties and responsible for implementing the emergency preparedness plan. Education for consumers, caregivers and families on how to handle care and treatment, safety and/or well-being during and following instances of natural (disease outbreak, tornado, flood, blizzard, fire, etc.) and other disasters or other similar situations appropriate to the needs of the consumer. The HCA will provide adequate staff education on emergency preparedness so that staff safety is assured.

The HCA will review its emergency preparedness plan after any incident response and on an annual basis, and incorporate into policy any substantive changes. A master copy of the EPP will be maintained by the HCA Manager. The plan will be available for review by all employees. Emergency situations could include, but are not limited to, the following: pandemic, disease outbreak, active shooter, tornado, blizzard, flood, fire, civil unrest, gas leak, IT system outage, seasonal influenza, etc.

In the event of an emergency situation, staff should follow the steps below. If there is any question on the course of action, staff should always contact the HCA directly.

1. Ensure the client is safe and away from the emergency. This could include moving the client to either the highest level in the home for emergencies like a flood or water leak, moving the client to the lowest level in the home for emergencies like a tornado/thunder storm/natural disaster. Staff are to contact 911 in an immediate emergency and then contact the HCA for next steps.
2. Do not leave the client's home until receiving direction from the HCA. Ensure that your cell phone and client phone are working properly, if possible depending on the emergency, so you are able to receive communication from the HCA.
3. If you are not on assignment with a client, contact the HCA to let them know your availability to help.
4. Follow the direction and assignments provided by the HCA administrative staff. Wait to hear from the HCA that the emergency situation has concluded.

HCA Contact Information

2851 S Parker Rd, 440 Aurora, CO 80014,
720 842-2153

Staff Signature_____

Date_____